

SECTION 135 ELECTRICITY ACT — COMPILATION DIGEST · CASES 001–011

Table of Authorities

Every case-law citation across the judgments, de-duplicated and ranked by frequency

All authorities relied on across Cases 001–011, one row per authority, ranked by how many judgments invoked it. Every citation in this set was drawn from the courts’ own reasoning — neither prosecution nor defence argued from case law. Treatment is “relied on” throughout.

CASES	AUTHORITY	PROPOSITION CITED FOR	RELIED ON IN	
10	<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569 · Supreme Court	An inspection report prepared by officers in discharge of official duty carries a presumption of regularity; onus on the consumer to rebut by cogent evidence.	001 003 005 008 010	002 004 006 009 011
10	<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, Crl. A. 1060/2010 (22.12.2010) · Delhi High Court	Non-examination of an independent/public witness is no infirmity where inspecting officials are trustworthy and bear no enmity to the accused.	001 003 005 008 010	002 004 006 009 011
10	<i>Neeraj Dutt v. State</i> SLP(Crl.) 6497/2020 · Supreme Court	'Shall presume' denotes a compulsory legal presumption the court is bound to draw until the fact is disproved.	001 003 005 008 010	002 004 006 009 011
10	<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16 · Supreme Court	Rebuttal of a statutory presumption need not be conclusive; evidence must make the defence reasonably probable to a prudent man.	001 003 005 008 010	002 004 006 009 011
10	<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108 · Delhi High Court	Easiest rebuttal of the theft presumption is production of paid electricity bills; Section 106 Evidence Act places that onus on the consumer.	001 003 005 008 010	002 004 006 009 011
4	<i>Sonu @ Amar v. State of Haryana</i> AIR 2017 SC 3441 · Supreme Court	Objection that an electronic record was admitted without a Section 65B certificate goes to the mode of proof and must be raised when the record is tendered; if not taken at trial it cannot be raised later.	001 003	002 005

CASES	AUTHORITY	PROPOSITION CITED FOR	RELIED ON IN
4	<i>Balu Sudam Khalde v. State of Maharashtra</i> 2023 INSC 314 · Supreme Court	Incriminating suggestions put by defence counsel in cross-examination bind the accused and can establish facts such as the factum of, and presence at, the inspection.	001 002 003 006
2	<i>Lokesh Chandela v. State of NCT & Ors.</i> Delhi HC, CrI. A. 479/2011 · Delhi High Court	Both user and owner/registered consumer fall within 'consumer' under Section 2(15); registered consumer answerable for illegal abstraction found at the premises.	004 005
1	<i>State of Haryana v. Bhagirath</i> AIR 1999 SC 2005; (1999) 5 SCC 96 · Supreme Court	Proof beyond reasonable doubt equates to moral certainty; a reasonable doubt is an honestly entertained doubt on a fair consideration of all evidence.	007
1	<i>Shivaji Sahebrao Bobade v. State of Maharashtra</i> 1974 (1) SCR 489 · Supreme Court	Benefit-of-doubt must not be stretched morbidly to embrace every hunch and hesitancy; social defence matters.	007
1	<i>Municipal Corporation of Delhi v. Ram Kishan Rohatgi</i> AIR 1983 SC 67 · Supreme Court	Reiterates the calibrated reasonable-doubt standard.	007
1	<i>Sushil Sharma v. BSES Rajdhani</i> 2011 (1) JCC 665 · Delhi High Court	Non-examination of an independent/public witness is no infirmity where the inspecting team bears no enmity and its testimony is trustworthy.	007

Compilation digest generated from the per-case summaries of Cases 001–011. It collates the courts' own reasoning for cross-referencing and is not a substitute for the full judgments.